

Number 2 *of* 2015

IRISH COLLECTIVE ASSET-MANAGEMENT VEHICLES ACT 2015

REVISED

Updated to 21 September 2018

This Revised Act is an administrative consolidation of the *Irish Collective Asset-Management Vehicles Act 2015*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Companies (Statutory Audits) Act 2018* (22/2018), enacted 25 July 2018, and all statutory instruments up to and including *Companies (Statutory Audits) Act 2018 (Commencement) Order 2018* (S.I. No. 366 of 2018), made 19 September 2018, were considered in the preparation of this Revised Act.

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An Act to make provision for the creation, operation and regulation of bodies corporate to be known as Irish Collective Asset-management Vehicles and to provide for related matters.

[4 *th March*, 2015]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Chapter 1

Preliminary

Short title and commencement

1. (1) This Act may be cited as the Irish Collective Asset-management Vehicles Act 2015.

(2) This Act shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

(3) In relation to times before the coming into operation of the Companies Act 2014 references in this Act to any provision of that Act have effect as references to the corresponding provisions of any enactment to be repealed by that Act.

Definitions

2. In this Act—

"AIFM Regulations" means the European Union (Alternative Investment Fund Managers) Regulations 2013 (S.I. No. 257 of 2013);

"annual general meeting" has the meaning given by *section 89(1)*;

[...**]**

(c) except in Regulations 45, 89(4)(a) and 107, an ICAV;",

and

(b) in Regulation 4(6) by—

(i) deleting "or" after subparagraph (c), and

(ii) substituting the following for subparagraph (d):

"(d) common contractual funds, or

(e) Irish collective asset-management vehicles.".

Adaptation of certain provisions of UCITS Regulations

188. (1) Regulations 17(11), 42(4) (d), 104(2), 125 to 127, 131, 134(1) to (9) and 135(1) and (2) of the UCITS Regulations apply to an ICAV authorised under section 19 as they apply to the bodies to which those Regulations relate but subject to the modifications in subsection (2).

(2) The modifications are that—

(a) references to repurchase are to purchase,

(b) references to the UCITS Regulations are to this Act,

(c) references to an UCITS are to an ICAV,

(d) references to a unit are to a share,

(e) references to a unit-holder are to a shareholder, and

(f) references to the Companies Acts include this Act.

(3) References to cognate terms or expressions in those Regulations shall be read accordingly.

Amendments of Central Bank Act 1942

189. The Central Bank Act 1942 is amended—

(a) in section 33AK(3) by inserting the following after paragraph (a)(vi)(II):

"or

(III) the Irish Collective Asset-management Vehicles Act 2015,",

and

(b) in Part 1 of Schedule 2 by inserting the following:

"

43	No._of 2015	*Irish Collective Asset-management Vehicles Act 2015*	The whole Act, apart from Parts 5, 10 and 12

".

Exemption from liability void

190. (1) Subject as follows, any provision whether contained in the instrument of incorporation of an ICAV or in any contract with an ICAV or otherwise for exempting any officer of the ICAV or any person employed by the ICAV as auditor from, or indemnifying him or her against, any liability which by virtue of any rule of law would otherwise attach to him or her in respect of any negligence, default, breach of duty or breach of trust of which he or she may be guilty in relation to the ICAV is void.